

G. Law of evidence

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1. Introduction

The main provisions governing evidence, the means and taking of evidence and the conservation of evidence are Art. 117 EPC, Art. 131(2) EPC, R. 117 EPC (R. 117 and 118 EPC were amended by decision CA/D 12/20 of the Administrative Council of 15 December 2020, OJ 2020, A132, which entered into force on 1 January 2021) to 124 EPC (the last rule as amended by decision CA/D 6/14 of the Administrative Council (OJ 2015, A17), which entered into force on 1 April 2015) and R. 150 EPC. R. 117 and 118 EPC as amended in 2020 relate to means of taking evidence by videoconference; compare with new Art. 15a RPBA, which entered into force in 2021 (OJ 2021, A19), and G 1/21 of 16 July 2021 (OJ 2022, A49).

In the revised EPC 2000, the content of Art. 117(2) to (6) EPC 1973 was rephrased in the new Art. 117(2) EPC. The procedural aspects concerning the taking of evidence were transferred to the Implementing Regulations (see OJ SE 5/2007, Part II, pp. 176-192). Furthermore, the revised Art. 117(1) EPC no longer lists the EPO departments which may

take evidence; it now includes a general reference to "proceedings before the European Patent Office" (T.2320/16 regarding oral proceedings by videoconference made some remarks on Art. 117 EPC 1973, the travaux préparatoires, and EPC 2000).

Art. 117 EPC, entitled "Means and taking of evidence", provides for the submission of evidence before all EPO departments, including the Receiving Section, examining divisions, opposition divisions, the Legal Division and the boards of appeal.

Beyond the letter of the EPC, the boards of appeal have addressed multiple issues of admissibility and taking of evidence in their case law. In addition, they have elaborated specific principles governing the evaluation of evidence and the allocation of the burden of proof in order to ensure that EPO proceedings are conducted in a fair and consistent manner.

In T.2037/18, the board explained that in most legal systems and in proceedings before the EPO (beyond the area open to examination by the EPO of its own motion), the **burden of presentation and the burden of proof** were allocated such that each party had to present and prove the facts that were favourable to them, i.e. the facts that supported their own assertions (T.219/83, T.270/90). According to the board, the principle of "*negativa non sunt probanda*", recognised in the boards' case law (see R.15/11, R.4/17), was a clear expression of this allocation of the burden of proof. In other words, a party to the proceedings was not required to prove a negative fact, but rather it was incumbent on the opposing side to prove any positive fact favourable to them. As a general rule, the burden of presentation followed the burden of proof.

In accordance with the principle of free evaluation of evidence, any kind of evidence, regardless of its nature, is admissible (T.482/89, OJ 1992, 646). Parties can freely choose the evidence they wish to submit – the kinds listed in Art. 117(1) EPC are merely examples (T.543/95, T.142/97, OJ 2000, 358).

That proceedings before the EPO are conducted in accordance with the principle of free evaluation of evidence was reiterated by the Enlarged Board (G.1/12, OJ 2014, A114).

Art. 117(1) EPC and Art. 113(1) EPC embody a basic procedural right, viz. the right to give evidence in appropriate form and the right to have that evidence heard (T.1110/03, OJ 2005, 302). A decision should discuss the facts, evidence and arguments which are essential to the decision in detail (see for example T.278/00, OJ 2003, 546, in chapter III.K.3.4.4 b)).

Whether or not a fact can be regarded as proven has to be assessed by the department hearing the case having taken all the relevant evidence into consideration (T.474/04, OJ 2006, 129 and T.545/08 citing G.3/97, OJ 1999, 245, point 5 of the Reasons).

If the evidence offered as proof of contested facts essential to the settlement of the dispute is decisive, the department hearing the case must, as a rule, **order that it be taken** (see T.474/04, OJ 2006, 129, about witnesses, see also T.2659/17). All appropriate offers of evidence made by the parties should be taken up (T.329/02).

The principle of unfettered consideration of the evidence does not apply until after it had been taken and could not be used to justify not taking evidence offered (T 2238/15, alleged prior use – offer of witnesses; see also the principles laid down in T 1363/14).

As regards the handling on appeal of evidence that was admitted in the first-instance proceedings, the EPC does not provide a legal basis for excluding, in appeal proceedings, documents which were correctly admitted into the first-instance proceedings, in particular when the impugned decision is based on them (T 1201/14, T 26/13, T 931/14, T 564/12; see also T 95/07, point 4.2.12 of the Reasons, T 1277/12 of 7 April 2017, and more recently T 110/18, T 617/16, T 487/16 (with reference to the RPBA 2007 and the RPBA 2020), T 2049/16, with detailed reasons; for the issue in general, see in particular chapter V.A.3.4.4 "Submissions admitted at first instance are part of the appeal proceedings"). Compare with the nuanced approach taken recently in T 960/15. And on the question of the admissibility of evidence submitted by the intervener, including the reintroduction of certain evidence originally submitted by a party but not admitted as late, see T 2951/18.

As for the standard of proof, the EPO generally applies the "balance of probabilities" (see J 20/85, OJ 1987, 102, point 4 of the Reasons). The balance of probabilities standard is met if, after evaluating the evidence, the boards are persuaded one way or the other (T 286/10). However, especially in cases where only one party – the opponent – had access to information about an alleged public prior use, the case law has tended toward expecting that the public prior use be proved beyond any reasonable doubt or "up to the hilt" (see e.g. T 55/01, point 4.1 of the Reasons; and T 472/92, OJ 1998, 161, point 3.1 of the Reasons; T 2451/13, Catchword). Summary of the case law concerning the standard of proof can be found e.g. in the following cases: T 738/04, point 3.4 of the Reasons; T 286/10, point 2.2 of the Reasons; T 918/11, point 3.3 of the Reasons; T 2054/11, points 2.2 and 2.3 of the Reasons; T 2227/11, point 2 of the Reasons; T 274/12, point 4.2.1 of the Reasons; T 202/13, point 15.6.1 of the Reasons; T 2451/13, point 3.2 of the Reasons; T 545/08, points 7-11 of the Reasons.

The standard of proof for **internet citations** now seems to have been established by the decisions in T 286/10 and T 2227/11, which were endorsed in T 1711/11, T 353/14 and T 545/08. The appropriate standard of proof for internet citations is the "**balance of probabilities**". The conclusion reached in the earlier decision T 1134/06 (followed by T 19/05 and T 1875/06) that the stricter standard of proof "beyond reasonable doubt" had to be applied to internet disclosures has been refuted.

Examining the evidence a board took into account would amount to revisiting the substance of the case and so falls outside the ambit of the review procedure (R 21/09, R 6/12). A reversal of the burden of proof is not covered by the exhaustive list of possible grounds for a petition for review (R 21/10).

R. 3(3) EPC provides that documentary evidence may be filed in any language. The EPO may, however, require that a translation in one of its official languages be filed within a specified period. If the required translation is not filed in due time, the EPO may disregard the document in question, as for example in T 276/07 (see T 2437/13 for another